

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sophia Manuel	Team: Team # 4	CCRB Case #: 201404239	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 05/01/2014 11:55 PM, Friday, 05/02/2014 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/1/2015		Precinct: 43	
Date/Time CV Reported Fri, 05/02/2014 10:01 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 05/02/2014 10:01 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Danny Williams	06515	951442	PSA 8

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ronnie Velez	01954	951384	PSA 8

Officer(s)	Allegation	Investigator Recommendation
A . POM Danny Williams	Abuse: PO Danny Williams frisked § 87(2)(b)	A . Alleged Victim Uncooperative
B . POM Danny Williams	Abuse: PO Danny Williams threatened to issue a disorderly conduct summons to § 87(2)(b)	B . Substantiated
C . POM Danny Williams	Abuse: PO Danny Williams issued a disorderly conduct summons to § 87(2)(b)	C . Alleged Victim Uncooperative

Case Summary

On May 2, 2014, § 87(2)(b) called the CCRB and filed this complaint via the Call Processing System (encl. 4). On May 2, 2014, PO Danny Williams of PSA 8 issued two summonses to § 87(2)(b) in front of § 87(2)(b) in the Bronx. The following allegations resulted:

- **Allegation A– Abuse of Authority: PO Danny Williams frisked** § 87(2)(b) § 87(2)(g) it is recommended that **Allegation A** be closed as **victim uncooperative**.
- **Allegation B– Abuse of Authority: PO Danny Williams threatened to issue a summons to** § 87(2)(b) § 87(2)(g) It is, therefore, recommended that **Allegation B** be **substantiated**.
- **Allegation C– Abuse of Authority: PO Danny Williams issued a disorderly conduct summons to** § 87(2)(b) § 87(2)(g) it is recommended that **Allegation C** be closed as **victim uncooperative**.

§ 87(2)(b) rejected mediation. § 87(2)(g)

Results of Investigation

Video Footage

On May 15, 2014, § 87(2)(b) provided a 30-second video to the CCRB, which he captured on his cell phone on May 2, 2014. In the video, PO Danny Williams stands to the left. He is on the phone and facing § 87(2)(b). PO Ronnie Velez stands to the right of PO Williams, facing § 87(2)(b). § 87(2)(b) kneels or sits to the side, filming the officers. § 87(2)(b) stands with his hands at his sides, facing § 87(2)(b). Everyone is quiet in the first two seconds of the video. At three seconds, § 87(2)(b) says, "I'm not wanted." § 87(2)(b) asks, "Where's your beer at?" PO Williams says, "I saw him drop it over there. Don't get stupid, 'cause you'll get a ticket too." § 87(2)(b) turns to PO Williams and says, "Yo. Come on man. Don't rub it in." While § 87(2)(b) says this, § 87(2)(b) simultaneously says, "I'll get a ticket for what?" § 87(2)(b) says, "Come on, man. Don't rub it in," as § 87(2)(b) repeatedly asks, "What am I gonna get a ticket for?" PO Williams says, "He's trying to be funny." § 87(2)(b) says, "No. No, he didn't say nothing. He's just trying to [inaudible]. And I'm telling you, you want to give me a ticket, just give me the ticket." As § 87(2)(b) says this, § 87(2)(b) says repeatedly, "What am I gonna get a ticket for?" PO Velez walks behind § 87(2)(b) approaches § 87(2)(b) and says, "Put that away real quick. Put that away real quick. You know what? You're making the situation worse again." § 87(2)(b) says, "No, but what I'm saying is, what am I gonna—." PO Velez cuts him off, saying, "He's getting aggravated. You're not getting a ticket." § 87(2)(b) says, "No, but you heard what he said?" PO Velez says, "Now stop recording. I'm telling you right now." § 87(2)(b) turns off the camera. Throughout the video, all voices are calm (encl. 8).

Civilian Statements

Complainant/Victim: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was § 87(2)(b). He is a Hispanic male, § 87(2)(b) with brown hair and hazel eyes.*
- § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed in his apartment, located at § 87(2)(b) in the Bronx, on May 15, 2014 (encl. 5-7). His statement was consistent with his initial phone statement on May 14, 2014 (encl. 4a). On May 1, 2014, at approximately 11:55 p.m., § 87(2)(b) was walking to his building with his friend, § 87(2)(b). They had just arrived on a subway and were walking from the station. § 87(2)(b) and § 87(2)(b) had been together for approximately one hour prior to the incident. § 87(2)(b) did not drink any alcoholic or non-alcoholic beverages. He did not have anything in his hands as he walked to the building. Two uniformed officers were standing in front of the building. The first officer, identified by the investigation as PO Danny Williams, was a black male, 6'0" tall. His shield number was 6515. The second officer, identified by the investigation as PO Ronnie Velez, was a Hispanic male, 5'10" tall, with an average build.

PO Williams said to § 87(2)(b) "You got your ID?" § 87(2)(b) handed his identification to PO Williams. § 87(2)(b) asked if PO Williams wanted his identification as well. PO Williams said he did not. The officers asked § 87(2)(b) if he was okay. PO Williams stated that § 87(2)(b) was drinking an alcoholic beverage. § 87(2)(b) took out his phone and began recording the incident, while sitting approximately three feet away from the officers. He asked, "Why are they giving you a ticket, § 87(2)(b). Where's the alcoholic beverage?" § 87(2)(b) told the officers that he did not have an alcoholic beverage. § 87(2)(b) said to PO Williams, "My nigger, why are you giving me a ticket?" PO Williams asked § 87(2)(b) if he was okay. § 87(2)(b) said, "Yeah, I'm okay. Are you okay?" PO Williams told § 87(2)(b) "If you don't be quiet, you're going to get a ticket, too." § 87(2)(b) asked why he would get a summons. PO Williams did not answer. § 87(2)(b) asked four times why he was going to get a summons. PO Velez said to § 87(2)(b) "You're not getting a ticket. Put the phone down. You're getting your friend aggravated." § 87(2)(b) was not getting aggravated. § 87(2)(b) put down his phone.

PO Williams checked § 87(2)(b)'s name over the phone. PO Williams said that § 87(2)(b)'s information was not coming up, so they handcuffed him. The officers walked § 87(2)(b) to the marked police car. § 87(2)(b) followed them to the police car. A marked prisoner van arrived after ten minutes. The officers put § 87(2)(b) in the prisoner van. The prisoner van took him to the stationhouse. § 87(2)(b) remained at his building. He did not receive a summons. Thirty to sixty minutes later, he saw § 87(2)(b) walking back up § 87(2)(b).

Victim: § 87(2)(b)

- At the time of the incident, § 87(2)(b) was § 87(2)(b).

Phone Statement

§ 87(2)(b) provided a brief phone statement on June 10, 2014 (encl. 9). He provided additional details on the phone on June 20, 2014 (encl. 10). At the time of the incident, he and § 87(2)(b) walked from the train station to § 87(2)(b), where they both lived. At the entrance of the building was a white male officer, identified by the investigation as PO Williams, and a Hispanic male officer, identified by the investigation as PO Velez. PO Williams accused § 87(2)(b) of discarding an open container of alcohol. § 87(2)(b) had not been holding anything. He did not have anything in his hand. He said to the officers, "How can you see me throw an open container when you're down there and I'm down here?" The officers said they were going to arrest him. § 87(2)(b) said, "What are you going to arrest me for?" § 87(2)(b) asked why the officers did not simply give § 87(2)(b) a summons and let him go. § 87(2)(b) said, "Just give me the ticket." § 87(2)(b) asked the officers why they were going to arrest § 87(2)(b) when he did nothing wrong. PO Williams said that they would arrest § 87(2)(b) too. § 87(2)(b) did not recall whether the officers issued § 87(2)(b) any commands before threatening to arrest him.

§ 87(2)(b) was recording the conversation on his cell phone. One of the officers approached § 87(2)(b) and told him to stop recording § 87(2)(b) said which officer, but it was inaudible due to poor phone connection). § 87(2)(b) said, "Yo. Don't shut it off." § 87(2)(b) did not know whether § 87(2)(b) stopped recording.

The officers brought § 87(2)(b) to the housing stationhouse to run a background check. They released him with a summons for disorderly conduct and a summons for § 87(2)(b).

Multiple attempts were made to obtain a sworn statement from § 87(2)(b). During the phone call on June 10, 2014, he stated that he was working § 87(2)(b)

On September 2 and 8, 2014, § 87(2)(b) was called. Each time, he did not answer, and voicemail messages were left asking him to call the CCRB. A first please call letter was mailed to § 87(2)(b) on September 8, 2014. § 87(2)(b) was called on September 16, 2014. A man answered the phone and said that § 87(2)(b) would be home in a few hours. He took a message for § 87(2)(b) to call the CCRB. § 87(2)(b) was called on September 23, 2014. A man answered and said that § 87(2)(b) went out last week and did not return. He did not know where § 87(2)(b) went, but said he would tell § 87(2)(b) to call the CCRB if he returned. A final please call letter was mailed to § 87(2)(b) on September 24, 2014. § 87(2)(b) was called on October 1, 2014. He did not answer, and a voicemail message was left asking him to call the CCRB. § 87(2)(b) did not contact the CCRB to schedule a sworn statement. Letters mailed to him were not returned to the CCRB by the United States Postal Service. A Department of Correction search on October 1, 2014, found that § 87(2)(b) was not incarcerated.

NYPD Statements:

Subject Officer: PO DANNY WILLIAMS

- At the time of the incident, PO Williams was § 87(2)(b). He is a black male, § 87(2)(b) with black hair and brown eyes.
- On May 2, 2014, PO Williams worked from 6:00 p.m. to 2:35 a.m., assigned to Post 251 with PO Velez. He was in uniform and on foot.

Summons

PO Williams issued summons number § 87(2)(b) to § 87(2)(b) at 12:59 a.m. on May 2, 2014 in front of § 87(2)(b) in the Bronx for § 87(2)(b) § 87(2)(b)

PO Williams also issued summons number § 87(2)(b) to § 87(2)(b) for disorderly conduct on May 2, 2014 in front of § 87(2)(b) in the Bronx. The CCRB requested a copy of the summons on October 15, 2014.

Memo Book

PO Williams wrote the following entries in his memo book: at 11:55 p.m., he stopped § 87(2)(b) in front of § 87(2)(b) for § 87(2)(b). PO Norman ran his name and ID number, § 87(2)(b). She said that it came back as 10-18, meaning he had an active warrant. PO Williams arrested § 87(2)(b) and transported him to the stationhouse at 12:17 a.m. They arrived at the stationhouse at 12:35 a.m. At 12:45 a.m., PO Williams checked § 87(2)(b)'s name and found that he did not have an active warrant. There was an error. § 87(2)(b) was released. PO Williams wrote additional details about the incident. He wrote that he observed § 87(2)(b) toss an 18-ounce glass bottle of Budweiser onto the grass when he saw PO Williams. PO Williams stopped him, and he became loud and boisterous, yelling, "Y'all stopped me for a beer, my nigger? Fuck you." This created a disturbance and annoyance for other NYCHA residents. PO Williams and PO Velez were finally able to calm § 87(2)(b) down, when his

friend started escalating the situation by videotaping and/or recording and saying, “Don’t worry bro. You don’t have the beer on you now. They have to prove it was you,” causing § 87(2)(b) to once again get excited, putting PO Williams and PO Velez in an unsafe situation. § 87(2)(b) s friend did this while PO Williams was trying to run § 87(2)(b) s name for warrants. § 87(2)(b) s friend interrupted PO Williams while he was conducting his lawful police duties. On the fly-page, PO Williams wrote the numbers of the two C-summonses that he issued to § 87(2)(b). There was one summons for § 87(2)(b) and one for disorderly conduct (encl. 11-16).

CCRB Statement

PO Williams was interviewed at the CCRB on July 15, 2014 (encl. 17-20). At 11:55 p.m. on May 1, 2014, PO Williams and PO Velez were standing in front of § 87(2)(b), where they were assigned to do a routine vertical patrol. PO Williams was standing behind PO Velez, looking over PO Velez’s shoulder. § 87(2)(b) and § 87(2)(b) turned the corner towards the building. Upon noticing the officers, § 87(2)(b) removed an 18-ounce bottle of Budweiser beer from a brown bag he was holding. He threw the bottle onto the ground and continued walking towards the building. PO Williams did not think that PO Velez could have seen the bottle from where he was facing.

When § 87(2)(b) and § 87(2)(b) reached the place where PO Williams and PO Velez were standing, PO Williams stopped § 87(2)(b) by saying, “Do you have identification?” § 87(2)(b) asked, “Why?” § 87(2)(b) became upset. PO Williams did not think that he was intoxicated. § 87(2)(b) asked, “What are you stopping me for?” PO Williams said, “I’m stopping you for open container. I saw you throw it.” § 87(2)(b) said, “Y’all stopped me for a beer, my nigger? Fuck you.” PO Williams told § 87(2)(b) to calm down because he was making the situation worse. § 87(2)(b) continued cursing. PO Velez tried to calm § 87(2)(b) down by saying, “Listen, it’s only a beer. You’re only going to get a summons. It’s fine. That’s it.” § 87(2)(b) calmed down. The officers asked him if he ever received a summons before. He said no. The officers explained that it was procedure to run his name for warrants. They requested his identification. § 87(2)(b) provided his identification. PO Williams frisked § 87(2)(b) for weapons, and did not feel any weapons. PO Williams called in for a warrant check on his cell phone.

While PO Williams was on the phone, § 87(2)(b) who had been quietly sitting to the side of § 87(2)(b) and the officers, about four feet away, said, “Don’t worry bro. You don’t have the beer on you now. They have to prove it was you.” This was the first thing that PO Williams recalled § 87(2)(b) saying. PO Williams did not recall § 87(2)(b) saying anything after this either. § 87(2)(b) started videotaping the officers with his cell phone. § 87(2)(b) became excited again as a result of § 87(2)(b) s actions and statement. § 87(2)(b) began yelling and moving his arms around. PO Williams felt unsafe because he did not know how § 87(2)(b) would react. If PO Williams shifted his attention away from § 87(2)(b) and towards § 87(2)(b) he would not be prepared if § 87(2)(b) hit him or PO Velez.

PO Velez approached § 87(2)(b) and tried to calm him down, saying, “You’re not helping the situation by videotaping. You’re making it worse.” In response, § 87(2)(b) stopped videotaping and protesting the summons. PO Velez also tried to calm § 87(2)(b) down. PO Williams did not recall saying anything to § 87(2)(b). His attention was towards § 87(2)(b) and the warrant check.

§ 87(2)(b) could have been arrested for obstruction of governmental administration because his verbal remarks and videotaping were preventing PO Williams from doing his duty by making § 87(2)(b) aggravated.

PO Williams received information that § 87(2)(b) had an open warrant. PO Williams again asked § 87(2)(b) if he had received a summons in the past. § 87(2)(b) said he had, but that

he paid for it already. PO Williams said that they had to take him back to the stationhouse to make sure that there was no open warrant for an unpaid summons. PO Williams or PO Velez handcuffed § 87(2)(b).

PO Williams took a picture of the Budweiser bottle with his cell phone. He did not submit the photo; he took the photo for himself. He showed the picture during his interview. It depicts a hand holding a glass Budweiser bottle in front of a black background. The date stamp on the photo is 5/2/2014. He showed the bottle to PO Velez, but not to § 87(2)(b) or § 87(2)(b).

PO Williams did not recall saying anything to § 87(2)(b) or § 87(2)(b) about the racial remark that § 87(2)(b) made to him.

§ 87(2)(b) did not stand up and get closer to officers until he found out that officers were taking § 87(2)(b) back to the stationhouse. PO Williams did not recall there being any people outside besides § 87(2)(b) and § 87(2)(b). A crowd never formed.

A police van arrived and transported § 87(2)(b). PO Williams, and PO Velez to the PSA 8 stationhouse. § 87(2)(b) was still “riled up” as he was escorted to the van. PO Williams did not recall § 87(2)(b) coming towards the van.

When they got to the stationhouse, PO Williams ran § 87(2)(b)'s identification again and found that there had been an error. § 87(2)(b) did not have an open warrant. PO Williams released § 87(2)(b) from the stationhouse with two summonses. One summons was for § 87(2)(b). The other summons was for disorderly conduct, which occurred when § 87(2)(b) was loud and boisterous and waved his arms. It was 1:00 a.m., and he was probably disturbing his neighbors, who were trying to sleep.

§ 87(2)(b)'s video was played for PO Williams. PO Williams identified himself as the officer talking on the phone, doing the warrant check. PO Williams identified his voice saying, “Don’t get stupid now because you’re going to get a ticket too.” After seeing himself make this statement, PO Williams recalled making this statement to § 87(2)(b). PO Williams was asked why he made this statement to § 87(2)(b). PO Williams’s counsel, Florence Friedman, said, “I’m not going to allow him to answer that.” PO Williams was then asked, “What were you intending to issue him a ticket for?” PO Williams said, “I was thinking disorderly conduct.” § 87(2)(b) was antagonizing PO Williams by asking § 87(2)(b) “Where’s your beer?” as captured in the video. § 87(2)(b) was not doing anything else for which he could have been issued a summons. PO Williams could not think of any other reason why he told § 87(2)(b) that he would get a ticket. PO Williams did not issue § 87(2)(b) a summons because, “cooler heads prevailed,” meaning that PO Williams decided to let it go and not take § 87(2)(b)'s antagonizing personally.

PO Williams identified PO Velez’s voice in the video saying, “You’re not going to get a ticket. Just put the phone away.” PO Williams said that § 87(2)(b)'s demeanor in the video was what PO Williams had been referring to when he said that § 87(2)(b) became excited again after § 87(2)(b) started videotaping. PO Williams described § 87(2)(b)'s demeanor at this point as “the slow start of a progression where it was going up ladder.” After PO Velez told § 87(2)(b) that he was not going to receive a summons and to stop videotaping, § 87(2)(b) became louder. § 87(2)(b) was quiet before the start of the video.

Witness Officer: PO RONNIE VELEZ

- At the time of the incident, PO Velez was § 87(2)(b). He is a Hispanic male, § 87(2)(b) with brown hair and brown eyes.
- On May 2, 2014, PO Velez worked from 6:00 p.m. to 2:35 a.m., assigned to Impact Post 151 with PO Williams. He was in uniform and on foot.

Memo Book

PO Velez wrote the following entries in his memo book: at 11:55 p.m., PO Williams stopped one male in front of § 87(2)(b) for § 87(2)(b). At 12:17 a.m., one person was arrested (encl. 21-24).

CCRB Statement

PO Velez was interviewed at the CCRB on July 22, 2014 (encl. 25-27). At the time of the incident, he and PO Williams were conducting patrol of the housing development which includes § 87(2)(b) in the Bronx. PO Williams observed § 87(2)(b) holding an open container of alcohol. § 87(2)(b) put the container on the ground and walked towards PO Williams and PO Velez with § 87(2)(b). PO Velez did not observe § 87(2)(b) with the container, but PO Williams later showed it to him. PO Velez could not recall whether it was a bottle or can or what type of alcohol it contained.

PO Williams stopped § 87(2)(b) to issue him a summons for § 87(2)(b). PO Williams requested § 87(2)(b)'s identification. § 87(2)(b) complied, though he was agitated. He was cursing in general and possibly at PO Williams. He was arguing loudly that he had not been drinking, but PO Williams insisted that he was drinking.

PO Williams and PO Velez calmed § 87(2)(b) down. He stopped cursing and being loud. PO Williams ran a warrant check over the radio while PO Velez stood beside him and made sure that § 87(2)(b) did not approach the officers or get involved.

§ 87(2)(b) recorded PO Velez and PO Williams. PO Velez knew that § 87(2)(b) was recording because he turned towards § 87(2)(b) and saw that his camera phone was pointed at the officers. PO Velez did not recall whether § 87(2)(b) was saying anything before PO Velez turned towards him and noticed the camera phone. Besides recording, § 87(2)(b) did not get physically involved in what the officers were doing. PO Velez did not recall § 87(2)(b) interfering with PO Williams while recording. PO Velez did not recall § 87(2)(b) doing anything physically besides recording.

As he was recording, § 87(2)(b) was saying something to agitate § 87(2)(b) but PO Velez did not recall what he said. § 87(2)(b) began cursing again, due to § 87(2)(b)'s statements and to § 87(2)(b) recording the incident. PO Velez did not recall whether § 87(2)(b) was doing anything with his arms.

PO Velez asked § 87(2)(b) to stop recording and to let PO Williams continue what he was doing. PO Velez did this because by recording, § 87(2)(b) was making § 87(2)(b) more agitated, meaning that § 87(2)(b) was cursing again. PO Velez believed that § 87(2)(b) complied with PO Velez's request that he stop recording. PO Velez did not recall whether § 87(2)(b) kept speaking. PO Velez did not recall whether § 87(2)(b) stopped being agitated and cursing.

PO Velez did not recall whether § 87(2)(b) did anything for which he could have been arrested or issued a summons.

PO Williams found out that § 87(2)(b) had an open warrant. He informed § 87(2)(b) of the warrant and placed him in handcuffs. § 87(2)(b) was agitated and cursing.

PO Velez did not recall § 87(2)(b) doing anything that constituted disorderly conduct, although § 87(2)(b) was yelling loud enough for neighbors to hear. There were no people around besides the two officers, § 87(2)(b) and § 87(2)(b).

PO Williams and PO Velez brought § 87(2)(b) to the stationhouse, where PO Williams found out that Central had made a mistake and there was no warrant. PO Williams issued § 87(2)(b) a summons for § 87(2)(b) and a second summons, which may have been for disorderly conduct. § 87(2)(b) was then released.

PO Velez did not recall whether PO Williams ever spoke to § 87(2)(b). PO Velez did not recall whether PO Williams told § 87(2)(b) that he could be issued a summons. PO Velez did not tell § 87(2)(b) that he could be issued a summons. PO Velez never thought to issue a summons to § 87(2)(b).

§ 87(2)(b)'s video was played for PO Velez. He identified himself as the officer on the right, by the door. He identified PO Williams as the officer on the left, talking on the phone. PO Velez identified PO Williams as the officer who said to § 87(2)(b) "I saw him drop it over there. Don't get stupid 'cause you're gonna get a ticket too." PO Velez recognized his own voice saying to § 87(2)(b) "Put that away real quick. You're gonna make the situation worse. You're making him aggravated. You're not getting a ticket."

After viewing the video, PO Velez recalled that PO Williams actually did the warrant check over the phone, not radio. After viewing the video, PO Velez recalled PO Williams telling § 87(2)(b) that he would get a summons. PO Velez did not know why PO Williams said that. PO Velez then told § 87(2)(b) that he would not get a summons because PO Velez wanted to "de-escalate the situation." The situation that PO Velez was trying to de-escalate was § 87(2)(b) getting more involved in the incident than he already was and causing § 87(2)(b) to get more aggravated. PO Velez did not want PO Williams's threat of summons to escalate the situation, so PO Velez tried to calm down § 87(2)(b) by reassuring him that he would not receive a summons. The situation escalated once PO Williams told § 87(2)(b) that he was going to get a summons.

PO Velez noted the video did not capture § 87(2)(b)'s most agitated behavior. At the beginning of the incident, during his argument with PO Williams about whether or not he had been drinking, § 87(2)(b) was louder. Then he calmed down. PO Velez did not recall whether § 87(2)(b) became loud again after the end of the video.

The first thing § 87(2)(b) said in the video was, "Where's your beer at?" PO Velez did not recall § 87(2)(b) saying anything before that, before the video started.

Summons for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of October 7, 2014, with regard to the incident (encl. 47).

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint in which § 87(2)(b) is listed (encl. 2a)
- § 87(2)(b) has filed the following CCRB complaints (encl. 2):

- § 87(2)(b)

- § 87(2)(b)
-

Subject Officer CCRB History

- PO Danny Williams has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 1).

Conclusion

Identification of Subject Officer

- PO Williams acknowledged frisking § 87(2)(b) and issuing him a summons for § 87(2)(b) and a summons for disorderly conduct. He acknowledged telling § 87(2)(b) that he could receive a summons § 87(2)(g).

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Danny Williams frisked § 87(2)(b)

PO Williams acknowledged frisking § 87(2)(b) for weapons after deciding to issue him a summons for § 87(2)(b), but before determining that § 87(2)(b) would be transported to the stationhouse on an open warrant.

§ 87(2)(b) did not cooperate in providing a sworn statement. § 87(2)(b) did not allege that PO Williams frisked § 87(2)(b). The video did not capture PO Williams frisking § 87(2)(b).

Based on the above, it is recommended that **Allegation A** be closed as **victim uncooperative**.

Allegation B – Abuse of Authority: PO Danny Williams threatened to issue a summons to § 87(2)(b)

It is undisputed that PO Williams threatened to issue a summons to § 87(2)(b) § 87(2)(g).

§ 87(2)(b) PO Williams, and PO Velez each testified that while PO Williams was on his phone, waiting for a warrant check on § 87(2)(b) § 87(2)(b) began videotaping the incident and asked § 87(2)(b) where the beer was, § 87(2)(g).

PO Williams then said to § 87(2)(b) “I saw him drop it over there. Don't get stupid, ‘cause you'll get a ticket too.” PO Williams and PO Velez did not recall § 87(2)(b) saying anything before he asked about the beer or saying anything else before PO Williams threatened to summons him. This fact pattern is reflected in the video footage.

PO Williams testified that he threatened § 87(2)(b) with a summons because § 87(2)(b) became excited and agitated in response to § 87(2)(b)'s statement and videotaping. He said § 87(2)(b) could have been summonsed for disorderly conduct or obstruction of governmental administration for preventing PO Williams from doing his duty by making § 87(2)(b) aggravated and excited. § 87(2)(b) who had been very agitated and loud when he was initially stopped, once again began yelling and waving around his arms. However, the video footage shows that § 87(2)(b) stood with his arms at his sides and said only, “I'm not wanted,” before § 87(2)(b) asked where the beer was, and § 87(2)(b) said nothing else in between that question and PO Williams's threat to summons § 87(2)(b) § 87(2)(b) became agitated only after PO

Williams made the threat, at which point both § 87(2)(b) and § 87(2)(b) began arguing with PO Williams about the threat.

PO Velez said that PO Williams's threat to summons § 87(2)(b) escalated the interaction, leading PO Velez to tell § 87(2)(b) that he was not going to be issued a summons. PO Velez said he never thought to issue a summons to § 87(2)(b).

Patrol Guide Procedure 208-03 states that a person remaining in the vicinity of a stop or arrest shall not be subject to arrest for Obstructing Governmental Administration unless the officer has probable cause to believe the person is obstructing governmental administration. Speech alone, taking videotapes, and remaining in the vicinity of the stop or arrest do not constitute probable cause for arrest of an onlooker unless the safety of the officers or other persons is directly endangered or the officer believes they are endangered or the law is otherwise violated (encl. i-xiii).

The disorderly conduct statute applies only to conduct which incites or risks inciting a breach of the peace and in situations that go beyond individual disputants and become a public concern. People v. Square, 20 Misc. 3d 1126A (Crim. Ct. New York Cty. 2008) (encl. xxxi-xxxiv).

In Police Department v. Seligson, OATH Index No. 1621/00 (2000), an officer's threat of arrest was deemed an abuse of authority because there was no reasonable basis for an arrest and the threat was based on personal pique (encl. xiv-xxx).

§ 87(2)(g)

It is, therefore, recommended that **Allegation B** be substantiated.

Allegation C – Abuse of Authority: PO Danny Williams issued a disorderly conduct summons to § 87(2)(b)

In addition to the open container summons, PO Williams issued a disorderly conduct summons to § 87(2)(b). PO Williams said that § 87(2)(b) was disturbing neighbors by yelling about being stopped. However, there were no neighbors outside and no one exited the nearby buildings. The video did not capture § 87(2)(b) being disorderly. § 87(2)(g)

§ 87(2)(b) did not cooperate with the investigation. It is, therefore, recommended that **Allegation C** be closed as **victim uncooperative**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____

Title/Signature

Print

Date